

Family Code § 3421(a) provides that a court of this state has jurisdiction to make an initial child custody determination only if any of the following apply: (1) this is the home state of the child on the date of commencement of the proceedings; (2) this was the home state of the child within 6 months before the commencement of the proceedings and the child is absent from this state but a parent or person acting as a parent continued to live in this state; (3) a court of another state does not have jurisdiction; or (4) a court of the home state of the child has declined to exercise jurisdiction on the grounds that this state is a more appropriate forum. The Petition and Declaration Under Child Custody Jurisdiction and Enforcement Act indicate that the minor has been living in the State of Texas with Petitioner since January 19, 2026. The child resides in Texas and does not have a parent or person acting as a parent in this state. While the minor has not lived in the State of Texas for at least six months, she will have resided there for six months as of June 19, 2026. Considering proper notice has not been provided, no ICWA inquiry was made, and a proper investigation could not be completed, Texas is a more appropriate forum for Petitioner to file for guardianship. The Petition is **DENIED** without prejudice. The clerk is directed to close the file. **No appearance is necessary on today's calendar.**

GUARDIANSHIP OF MAKAYLA LINDSTROM

CASE NUMBER: 22PG-0031565

This matter is on calendar for hearing on a Petition to Remove Guardians and Petition for Appointment of Successor Guardian of the Person. The Petitions were filed by the minor's non-relative caregiver, Caroline Santo. Letters of Temporary Guardianship were requested but denied pending hearing. The current guardians are Ellen Fulkerson and Norman Turner. This matter is also on calendar for further proceedings on the Annual Review and Order to Show Cause issued to the Guardians for failure to file a Confidential Guardianship Status Report and failure to appear on March 23, 2026.

Petition to Remove Guardians.

The Court will dispense with notice to the deceased mother and paternal grandfather. There is no proof of service of the Notice of Hearing and Petition for the minor, guardians, father, maternal grandparents, or paternal grandmother. Insufficient information has been provided to permit the Court to dispense with notice to these parties. All parties may be served by mail.

Petition for Successor Guardian.

The minor has consented to the guardianship. The Court will dispense with notice to the deceased mother and paternal grandfather. There is no proof of the Notice of Hearing and Petition for the guardians, father, maternal grandparents, or paternal grandmother. Insufficient information has been provided to permit the Court to dispense with notice. The parents must be personally served in order to move forward on the Petition. Prob. Code § 1511(b). All other parties may be served by mail. Prob. Code § 1511(c). Alternatively, the above parties can sign a consent and waiver of notice (GC-211, section 4), in lieu of being served.

The Indian Child Inquiry Attachment (form ICWA-010(A)) is insufficient, as it indicates the only person contacted was Norman Turner, the minor's godparent. An inquiry must be completed by asking the child, the child's parents, and other required and available persons about the child's Indian status. Petitioner is **ORDERED** to complete and file an amended ICWA-010(A).

The Court has reviewed the Children's Services report filed on May 22, 2026, which recommends granting the Petition. This matter is continued to **Monday, June 29, 2026, at 8:30 a.m. in Department 42** for further proceedings on the Petitions, Annual Review, and Order to Show Cause. The Temporary Guardianship is **ORDERED** to remain in effect until the continued hearing date. Petitioner is required to file and serve a new Notice of Hearing for the continued hearing date, along with a copy of the Petition, on the parties identified above. In the alternative, if Petitioner cannot serve the parties identified, the Court will require a declaration explaining in detail all efforts of Petitioner to locate and serve them and why they cannot be served, to permit the Court to dispense with notice. **Warning: Failure to properly effect service or provide adequate basis to dispense with service as to the necessary parties will result in denial of the Petition. Notice is preserved. No appearance is necessary on today's calendar.**

GUARDIANSHIP OF RIVER MALBECK

CASE NUMBER: CVPG14-0027899

This matter is on calendar for Annual Review. The Confidential Guardianship Status Report has been submitted and is under review by the Court. The matter is continued to **Monday, June 15, 2026, at 8:30 a.m. in Department 42** for further proceedings regarding Annual Review. **No appearance is necessary on today's calendar.**

GUARDIANSHIP OF ZANDER MCKAY

CASE NUMBER: 26PG-0033322

This matter is on calendar for hearing on a competing Petition for Appointment of Guardian of the Person filed by the minor's maternal grandparents, Jose and Norma Rodriguez and for further proceedings on a Petition for Appointment of Guardian of the Person filed by the minor's paternal grandmother, Nicole Justice. Letters of Temporary Guardianship issued to Jose and Norma Rodriguez on April 27, 2026, and are set to expire today unless further extended.

Rodriguez Petition.

The mother and maternal grandparents/Petitioners have consented to the guardianship and waived notice. The Court will find the siblings to have notice as they are under the age of 12 and are currently in the custody of Petitioners. There is no proof of service of the Notice of Hearing and Petition for the father, or paternal grandparents. Insufficient information has been provided to permit the Court to dispense with notice to these parties. The father must be personally served in order to move forward on the Petition. Prob. Code § 1511(b). All other parties may be served by mail. Prob. Code § 1511(c). For siblings under 12 years of age, service can be on the parent or guardian with whom the sibling resides. Prob. Code § 1460.1. Alternatively, the above parties can sign a consent and waiver of notice (GC-211, section 4), in lieu of being served.

Justice Petition.

A new Notice of Hearing was filed and served for today's date; however, the proof of service filed on May 22, 2026, fails to state a copy of the Petition was served under item 5. Additionally, the proof of service indicates the parents were served by mail. There is no valid proof of service of the Notice of Hearing and Petition for the mother, father, maternal grandfather, or siblings. The parents must be personally served in order to move forward on the Petition. Prob. Code § 1511(b). All other parties may be served by mail. Prob. Code § 1511(c). For siblings under 12 years of age, service can be on the parent or guardian with whom the sibling resides. Prob. Code § 1460.1.